ElevenLabs Terms of Service (non-EEA)

Last Updated: 31 March 2026

These ElevenLabs Terms of Service apply if you reside outside of the European Economic Area (EEA), Switzerland, or UK. If you live in the EEA, Switzerland, or UK, these other ElevenLabs Terms of Service apply to you.

These ElevenLabs Terms of Service ("**Terms**") are between you ("**you**" or "**your**") and Eleven Labs Inc. ("**ElevenLabs**", "**we**", "**us**", or "**our**"). By accessing or using our Services (defined below) in any way, by completing the account registration process, or by browsing the Website (defined below), you agree to be bound by these Terms. These Terms apply to your access to and use of the ElevenLabs:

1. website located at elevenlabs.io and all associated web pages, websites, and social media pages (the "**Website**"); and
2. services (including mobile applications) and products accessible via the Website or our application programming interfaces (APIs), or otherwise made available to you by us (together with the Website, the "**Services**"). For the avoidance of doubt, Beta Services (as defined in the Beta Services Addendum) are not considered "Services" under these Terms.

IF YOU SUBSCRIBE TO ANY FEATURE OR FUNCTIONALITY OF THE SERVICES FOR A TERM (THE "**INITIAL TERM**"), THEN YOUR SUBSCRIPTION WILL BE AUTOMATICALLY RENEWED FOR ADDITIONAL PERIODS OF THE SAME DURATION AS THE INITIAL TERM AT

ELEVENLABS' THEN-CURRENT FEE FOR SUCH FEATURES AND FUNCTIONALITY UNLESS YOU DECIDE NOT TO RENEW YOUR SUBSCRIPTION IN ACCORDANCE WITH SECTION 6(A) BELOW.

THESE TERMS CONTAIN VARIOUS LIMITATIONS AND EXCLUSIONS OF LIABILITY IN SECTION 11.

SECTION 12 CONTAINS PROVISIONS THAT GOVERN HOW TO RESOLVE DISPUTES BETWEEN YOU AND ELEVENLABS. ADDITIONALLY, SECTION 12 INCLUDES AN AGREEMENT TO ARBITRATE WHICH REQUIRES, WITH LIMITED EXCEPTIONS, THAT ALL DISPUTES BETWEEN YOU AND ELEVENLABS SHALL BE RESOLVED BY BINDING AND FINAL ARBITRATION. SECTION 12 ALSO CONTAINS A CLASS ACTION AND JURY TRIAL WAIVER. PLEASE READ SECTION 12 CAREFULLY. UNLESS YOU OPT OUT OF ARBITRATION WITHIN THIRTY (30) DAYS AS SET FORTH IN SECTION 12: (1) YOU WILL ONLY BE PERMITTED TO PURSUE DISPUTES OR CLAIMS AND SEEK RELIEF AGAINST ELEVENLABS ON AN INDIVIDUAL BASIS, NOT AS A PLAINTIFF OR CLASS MEMBER IN ANY CLASS OR REPRESENTATIVE ACTION OR PROCEEDING, AND YOU WAIVE YOUR RIGHT TO PARTICIPATE IN A CLASS ACTION LAWSUIT OR CLASS-WIDE ARBITRATION; AND (2) YOU ARE WAIVING YOUR RIGHT TO PURSUE DISPUTES OR CLAIMS AND SEEK RELIEF IN A COURT OF LAW AND TO HAVE A JURY TRIAL.

We may indicate that different or additional terms, conditions, guidelines, policies, or rules apply in relation to your access to and use of some or all of our Services ("**Supplemental Terms**"), including:

- Our Service-Specific Terms, which apply to your use of certain Services;
- Our Prohibited Use Policy, which applies to your use of all of our Services;
- The Voice Library Addendum, which applies your use of our Voice Library Service;
- Our Beta Services Addendum, which applies to your use of our Beta Services;
- Our Music Marketplace Addendum, which applies to your use of the Music Marketplace;
- Our OEM Terms, which apply to your bundling, making available and sublicensing of certain Services (ex. incorporating the ElevenLabs Services in your own solution);
- Our Data Processing Addendum, which governs our processing of any personal data contained within any content our business clients provide to us;
- Our ElevenReader Terms, which apply to your use of ElevenReader;
- Our Enterprise Pilot Terms, which apply to your use of our Pilot Services; and
- Any other terms and conditions disclosed within the Services, such as restrictions relating to use of a User Voice Model (defined below).

Any Supplemental Terms become part of your agreement with us if you use the applicable Services, and if there is a conflict between these Terms and the Supplemental Terms, the Supplemental Terms will control for that conflict. We may make changes to these Terms. The “Last Updated” date above indicates when these Terms were last changed. If we make future changes, we may provide you with notice of those changes by any reasonable means, such as by sending an email, providing a notice through our Services, or updating the date

at the top of these Terms. Unless we say otherwise in our notice, the amended Terms will be effective immediately, and your continued use of our Services after we provide such notice will confirm your acceptance of the changes. If you do not agree to the amended Terms, you must immediately stop using our Services.

1. Eligibility and Use Restrictions

(a) Age. If you are under 18 years of age (or the age of legal majority where you live), you may not use our Services

(b) Authorization. If you register, access or use our Services on behalf of another person or entity, (i) all references to “you” throughout these Terms (other than in this Section 1(a)) will include that person or entity, (ii) you represent that you are authorized to enter into these Terms on that person’s or entity’s behalf, and (iii) in the event you or that person or entity violates these Terms, that person or entity also agrees to be responsible to us. If you are an entity using any Services pursuant to these Terms, you are responsible for your employees’ and representatives’ use of the Services, including ensuring they comply with these Terms.

(c) Use Restrictions. Your access to and use of the Services and your use of any Output (defined below) must comply with these Terms. Without limiting the forgoing: (i) if you access or use our Services free of charge (such a user, a “**Free User**”), you may only use the Services for non-commercial purposes; (ii) if

you access or use our Services through a paid subscription plan (such a user, a "**Paid User**"), you may use the Services for commercial purposes, but in either case, your access and use of the Services and any Output must still comply with the Prohibited Use Policy. Use of the Services by Government Entities (as defined in the Prohibited Use Policy) is subject to the terms of the Prohibited Use Policy. If using the Services for non-commercial purposes, a personal e-mail address must be used. To the extent you register for the Services using a business entity's email address, you acknowledge that we may deem such entity a Controller (as defined in the Data Processing Addendum) as it relates to the Personal Data contained in your account, and we may take action on your account at the direction of the Controller.

2. Personal Data

You may provide certain information to ElevenLabs in connection with your access to or use of our Services, or we may otherwise collect certain information about you when you access or use our Services. You agree to receive communications from ElevenLabs via the Services using the email address or other contact information you provide in connection with the Services. You represent and warrant that any information that you provide to ElevenLabs in connection with the Services is accurate. For information about how we collect, use, share, and otherwise process information about you, please review our Privacy Policy.In addition, where you agree to these terms on behalf of an entity, you agree that the Data Processing Agreement governs ElevenLabs's processing

of any personal data contained within any content you input to our Services. You acknowledge that ElevenLabs may process personal data relating to the operation, support, or use of our Services for our own business purposes, such as billing, account management, data analysis, benchmarking, technical support, product development, research and development of its AI models, improvement of its systems and technologies, and compliance with law.

3. Accounts

We may require that you create an account in order to use some or all of our Services. You may not share or permit others to use your individual account credentials. You will promptly update any information contained in your account if it changes. You must maintain the security of your account, as applicable, and promptly notify us if you discover or suspect that someone has accessed your account without your permission. If your account is closed or terminated, you will forfeit all unused credits related to our Services (including character credits) associated with your account.

4. Content and User Voice Models; Models

(a) Inputs and Outputs. You may transmit or otherwise provide data and information as input to our Services ("**Input**"). When you provide Input to the Services, you may receive audio output generated and returned by one or more Voice Models (defined below), or text output generated and returned by one or more LLMs (defined below), based on Input ("**Output**") (Input and Output, collectively, the "**Content**"). Input may include, without limitation, recordings of your voice, text descriptions, or any other content that you may provide to us through the Services. Your access to and use of the Services, including for the purposes of providing Input to the Services and receiving and using the Output from the Services, is subject to our Prohibited Use Policy. We may enable you to download Output from some (but not all) of the Services; in such cases, you are permitted to use such Output outside of the Services but always subject to these Terms and our Prohibited Use Policy. If you choose to make any of your information publicly available through the Services or otherwise, you do so at your own risk.

(b) User Voice Models. Some of our Services allow you to create a voice model that can be used to generate Output in the form of synthetic audio sounding like your voice or a voice you are authorized to share with us (a "**User Voice Model**"). To create a User Voice Model through our Services, you may be asked to upload audio recordings of your voice or the voice you are authorized to share with us as Input to our Services, and ElevenLabs is permitted to use those audio recordings of the voice you provide to us subject to subsection 4(d) below. For more information on how we collect, use, share, retain, and destroy your audio recordings, please see the Voice Processing Notice in our Privacy Policy. You

may request deletion of your User Voice Models created with your Input recordings through your account.

(c) Rights to your Content.

(i) Except as expressly set forth herein, as between you and ElevenLabs, you retain all rights in and to your Input.

(ii) For the avoidance of doubt, Output may be generated by, but does not include, ElevenLabs' foundational and other artificial intelligence voice models (the "**Voice Models**") or ElevenLabs' foundational and other artificial intelligence or language learning models ("**LLMs**") (Voice Models and LLMs, collectively, the "**Models**"). Except as expressly set forth herein, as between you and ElevenLabs, you retain all rights in and to your Output.

(d) License to Your Content. You hereby grant to ElevenLabs a license to use, reproduce, modify, adapt, publish, translate, create derivative works from, distribute, publicly or otherwise perform and display, and use your Content to provide the Services (including the trust and safety features therein), to improve the Services, and to develop new services and products. For avoidance of doubt, to the extent that your Content includes your voice, the foregoing license allows ElevenLabs to reproduce, modify, publish, create derivative works from, distribute, publicly or otherwise perform, and use your voice, and other indicia of your persona that may be contained therein, to provide and improve the Services, and to develop new services and products. Notwithstanding the

foregoing, we will not commercialize your voice on a standalone basis without your permission to do so. Such license shall be:

- perpetual and irrevocable (which means this license cannot be withdrawn),
- nonexclusive (which means you can license your Input to others),
- royalty-free and fully paid (which means there are no monetary fees for this license),
- worldwide (which means it's valid anywhere in the world), and
- sub-licensable, through multiple tiers (which means we can make it available to others).

(e) License to User Voice Models. To the extent you own or acquire any intellectual property rights in or to any User Voice Models, you hereby grant to ElevenLabs a license to use, reproduce, modify, adapt, publish, translate, create derivative works from, distribute, publicly or otherwise perform and display, and use the User Voice Models to provide the Services (including the trust and safety features therein) to you, to improve the Services, and to develop new services and products. Such license shall be:

- perpetual and irrevocable (which means this license cannot be withdrawn),
- nonexclusive (which means you can license your Input to others),
- royalty-free and fully paid (which means there are no monetary fees for this license),
- worldwide (which means it's valid anywhere in the world), and
- sub-licensable, through multiple tiers (which means we can make it available to others).

(g) Necessary Rights. You may not provide Input or create Output for which you do not have all the rights necessary to grant us the license described above. You represent and warrant that the Content and User Voice Models, and our use of

the Content and User Voice Models, will not violate any rights of any person or entity, or cause injury to any person or entity.

(h) No PHI. You may not provide any Input that includes protected health information as defined by the Health Insurance Portability and Accountability Act (HIPAA) of 1996, Pub. L. No. 104-191 except as permitted by an executed HIPAA BAA.

(i) Data Deletion and Opt Out. You may request for us to delete your personal data as required under applicable law. Please see our Privacy Policy for more information. In addition, you may opt out of our use of your Content for training at any time by navigating to the 'Data use' menu in the 'Terms and Privacy' section of your ElevenLabs account. Your Content will no longer be used to improve our Services (including the Models) once the request has been processed by our team, except as may be necessary to provide the Services to you, but does not affect any uses of (or materials resulting from uses of) your Content prior to that date.

(j) Moderation. We do not undertake to review all Content, and we expressly disclaim any duty or obligation to undertake any monitoring or review of any Content. Although we have no obligation to screen, edit, or monitor Content, we may:

(i) delete or remove Content or refuse to post any Content at any time and for any reason with or without notice, including for any violations of applicable law or these Terms;

(ii) terminate or suspend your access to all or part of the Services, temporarily or permanently, if the Content is reasonably likely, in our sole determination, to violate applicable law or these Terms;

(iii) take any action with respect to the Content that is necessary or appropriate, in ElevenLabs' sole discretion, to ensure compliance with applicable law and these Terms, or to protect Company's rights, or to protect any third-party rights, including third-party intellectual property and privacy rights (e.g., providing information to copyright owners in furtherance of Digital Millennium Copyright Act takedown requests) or to respond to threats to the personal safety of users or the public; and

(iv) as permitted by law, cooperate fully with any law enforcement authorities or court order requesting or directing us to disclose the identity or other information of anyone posting any Content on or through the Services.

5. Our Intellectual Property

(a) Ownership. The Services, including the text, graphics, images, photographs, videos, illustrations, and other content contained therein, and all intellectual

property rights therein and thereto, are owned by ElevenLabs or our licensors. Except as explicitly stated in these Terms, all rights in and to the Services, including all intellectual property rights therein and thereto, are reserved by us or our licensors.

(b) Limited License. Subject to your compliance with these Terms, ElevenLabs hereby grants to you a limited, non-exclusive, non-transferable, non-sublicensable, revocable license to access and use our Services. For clarity, any use of the Services other than as specifically authorized herein, without our prior written permission, is strictly prohibited and will terminate the license granted herein.

(c) Trademarks. The name “ElevenLabs” and our logos, product or service names, slogans, and the look and feel of the Services are trademarks of ElevenLabs and may not be copied, imitated or used, in whole or in part, without our prior written permission. All other trademarks, registered trademarks, product names, and company names or logos mentioned or in connection with the Services are the property of their respective owners. Reference to any products, services, processes, or other information by trade name, trademark, manufacturer, supplier, or otherwise does not constitute or imply endorsement, sponsorship, or recommendation by us.

(d) Feedback. You may voluntarily post, submit, or otherwise communicate to us any questions, comments, suggestions, ideas, original or creative materials, or other information about ElevenLabs or our Services (collectively, “**Feedback**”).

You understand that we may use such Feedback for any purpose, commercial or otherwise, without acknowledgement or compensation to you, including to develop, copy, publish, or improve the Feedback or Services, or to improve or develop new products, services, or technologies in ElevenLabs' sole discretion. ElevenLabs will exclusively own any improvements to, or new inventions based upon, such Services, or Services based on the Feedback. You understand that ElevenLabs may treat any Feedback as nonconfidential.

6. Subscription Services; Payment

(a) Subscriptions. To access and use certain Services, you may be required to enroll in a subscription payment plan (a "**Recurring Subscription**"). Your Recurring Subscription will automatically renew until you cancel it or your Recurring Subscription is otherwise terminated. You authorize us to store your payment method information and to automatically charge your payment method(s) for the amount of your Recurring Subscription with no further action required by you. The length of your Recurring Subscription will be provided when you make your purchase. In the event that ElevenLabs is unable to charge your payment method(s) as authorized by you when you enrolled in a Recurring Subscription, ElevenLabs may in its sole discretion (i) suspend your access to the Services until payment is received or (ii) seek to update your payment method information through third-party sources (i.e., your bank or a payment processor) to continue charging your payment method as authorized by you. You may cancel your subscription through your account. You may cancel a Recurring

Subscription at any time, but if you cancel your Recurring Subscription before the end of the current subscription period, we will not refund any subscription fees already paid to us. Following any cancellation, however, you will continue to have access to the applicable Services through the end of your current subscription period. ElevenLabs may change the prices charged for Recurring Subscriptions at any time by posting updated pricing through the Services; provided, however, that the prices for your Recurring Subscription will remain in force for the duration of the subscription period for which you have paid. After that period ends, your use of the applicable Services will be charged at the then-current subscription price. If you do not agree to these price changes, you must cancel your Recurring Subscription at least 7 days before the changes take effect. If you do not cancel, your Recurring Subscription will automatically renew at the then-current price at the time of renewal and for the same duration as the initial subscription term, and ElevenLabs will charge your on-file payment card or method on the first day of the renewal of the subscription term.

(b) Prepaid Credits.

(i) **Overview and Nature of Prepaid Credits.** ElevenLabs may offer prepaid usage credits ("**Prepaid Credits**") for certain Services or Accounts. Prepaid Credits are a limited, revocable, prepaid right to access Services, are not money or a monetary equivalent, and do not constitute a deposit, stored value, or balance held for your benefit, nor do they create any fiduciary or custodial relationship.

(ii) **Promotional Credits.** From time to time, ElevenLabs may issue Prepaid Credits without charge as part of a promotional, marketing, or trial program ("**Promotional Credits**"). Promotional Credits are subject to these Terms unless otherwise expressly stated at the time of issuance and may be subject to additional restrictions, including limitations on use, expiration, or eligibility.

(iii) **Purchase of Prepaid Credits.** Prepaid Credits may be purchased through your Account under Section 6, either as a one-time purchase or via recurring purchase. ElevenLabs may impose purchase limits, and Prepaid Credits are issued upon successful payment. If you elect to enable recurring purchase, you authorize ElevenLabs to automatically charge your saved Payment Method and add additional Prepaid Credits to your Account when your available Prepaid Credits balance falls below the threshold you select. The recurring purchase will continue until you disable the feature or your Account is terminated in accordance with these Terms.

(iv) **Use of Prepaid Credits.** Prepaid Credits may be used only to pay for eligible Services as expressly permitted by ElevenLabs and solely in connection with your Account. The rate at which Prepaid Credits are applied to Services may vary depending on your Recurring Subscription and the pricing applicable to your use of the Services at the time of use. Prepaid Credits may not be transferred, sold, gifted, traded, sublicensed, or assigned, whether for value or otherwise, and any purported transfer is void.

(v) **Account Balance and Responsibility.** Your available Prepaid Credits balance is viewable through your Account, and you are solely responsible for verifying all Prepaid Credits additions and deductions. Your Prepaid Credits balance is not a bank account, digital wallet, stored value account, or other payment device.

(vi) **Expiration of Prepaid Credits.** Unless otherwise specified at the time of purchase or issuance, all Prepaid Credits expire twelve (12) months after the date of purchase or issuance, as applicable. Expired Prepaid Credits are automatically removed from your Account and may not be reinstated. ElevenLabs has no obligation to provide notice prior to the expiration of Prepaid Credits.

(vii) **No Refunds; Final Sale.** Except where required by applicable law, Prepaid Credits purchases are non-refundable, and no refunds or credits will be provided for unused, partially used, expired, or forfeited Prepaid Credits. Unused Prepaid Credits are not refundable upon Account suspension or termination.

(viii) **Prohibited Transfers and Misuse.** ElevenLabs does not permit or recognize the sale, transfer, gift, trade, or exchange of Prepaid Credits. Any such attempt constitutes a material breach and may result, at ElevenLabs' discretion, in cancellation or forfeiture of Prepaid Credits or termination of your Account without refund.

(ix) **Changes to Prepaid Credits Terms.** ElevenLabs may modify Prepaid Credits pricing, usage rates, expiration periods, or eligible Services under Section 14. Such changes apply prospectively and will not reduce the remaining validity of purchased Prepaid Credits, except as required by law or for fraud prevention, security, or legal compliance.

(x) **Effect of Account Termination.** Upon suspension or termination of your Account for any reason, including under Section 14, any unused Prepaid Credits remaining in your Account will be forfeited without refund, except where required by applicable law.

(c) Other Usage Charges. In the event your usage exceeds the volume provided under your Recurring Subscription, you will be charged usage overage fees for your Recurring Subscription, as indicated to you upon subscribing. In such event, you hereby authorize us to charge your payment method on file or any other payment method you choose for these charges.

(d) Payment. You represent and warrant that you have the right to use any payment method that you submit in connection with a payment. We may receive updated information from your issuing bank or our payment service provider about any payment method you have stored with us. You authorize us to charge your payment method, including any updated payment method information we receive, for any charges you are responsible for under these Terms. Verification of information may be required prior to the acknowledgment or completion of any transaction. You agree to pay all charges incurred by you or on your behalf

through the Services, at the prices in effect at the time such charges are incurred, including applicable taxes, such as Japanese Consumption Tax ("**JCT**") (see below for more details), where required by law, as well as any shipping and handling charges related to your transactions. In the event legal action is necessary to collect on balances due, you will reimburse us and our vendors or agents for all expenses incurred to recover sums due, including attorneys' fees and other legal expenses.

(e) Refunds and Exchanges. All sales are final. We may offer refunds at our sole discretion.

(f) Reservation of Rights. ElevenLabs reserves the right, including without prior notice to impose conditions on the honoring of any coupon, discount, or similar promotion; to bar any user from making any transaction; to alter the payment option for services; and to refuse to provide any user with any Service.

(g) JCT. If the Services under these Terms are subject to JCT under the reverse charge mechanism, you agree to self-assess, report, and remit the applicable tax directly to the Japanese tax authorities. ElevenLabs will not charge or remit JCT for these Services.

7. Copyright Complaints

(a) Reporting Claims of Copyright Infringement. ElevenLabs takes claims of intellectual property infringement very seriously. The best way to report content on our Services that you believe may infringe your copyrights is by reporting it here.

You can also send a removal request by email to copyright@elevenlabs.io or by certified mail to:

Eleven Labs Inc.

Attn: Copyright Agent

169 Madison Ave #2484

New York, NY 10016

As set forth in Section 512(c)(3) of the DMCA, copyright removal requests must include all of the following information:

(i) A physical or electronic signature of a person authorized to act on behalf of the owner of an exclusive right that is allegedly infringed.

(ii) Identification of the copyrighted work claimed to have been infringed, or, if multiple copyrighted works at a single online site are covered by a single notification, a representative list of such works at that site.

(iii) Identification of the material that is claimed to be infringing or to be the subject of infringing activity and that is to be removed or access to which is to be disabled, and information reasonably sufficient to permit ElevenLabs to locate the material.

(iv) Information reasonably sufficient to permit ElevenLabs to contact the complaining party, such as an email address.

(v) A statement that the complaining party has a good faith belief that use of the material in the manner complained of is not authorized by the copyright owner, its agent, or the law.

(vi) A statement that the information in the notification is accurate, and under penalty of perjury, that the complaining party is authorized to act on behalf of the owner of an exclusive right that is allegedly infringed.

If you fail to comply with all of the above requirements, your notice may not be effective. If you knowingly materially misrepresent that any activity or material on our Services is infringing, you may be liable to ElevenLabs for certain costs and damages.

(b) Our Policy on Repeat Infringers. In accordance with the Digital Millennium Copyright Act ("**DMCA**") and other applicable law, we have adopted a policy of terminating, in appropriate circumstances, the accounts of users who repeatedly infringe the intellectual property rights of others. A "repeat infringer" is a user who

has multiple copyright complaints lodged against their content or account. Users will not be penalized if copyright complaints are retracted, the content owner files a valid counter notice, or the complaint is subject of active litigation.

8. Third-Party Services and Content

(a) Our Services rely on or interoperate with third-party products and services, including data storage services, communications technologies, third-party LLM providers, and internet and mobile operators (collectively, "**Third-Party Services**"). These Third-Party Services are beyond our control, but their operation may impact, or be impacted by, the use and reliability of our Services.

(b) We may further provide information about or links to third-party products, services, activities, or events, or we may allow third parties to make their content and information available on or through the Services (collectively, "**Third-Party Content**"). Your dealings or correspondence with third parties and your use of or interaction with any Third-Party Content are solely between you and the third party.

(c) We have no obligation to monitor Third-Party Services or Third-Party Content, and we may block or disable access to any Third-Party Services or Third-Party Content (in whole or part) through our Services at any time. Your access to and use of such Third-Party Content or Third-Party Services may be subject to additional terms, conditions, and policies applicable to such Third-Party Content

(including terms of service or privacy policies of the providers of such Third-Party Services). You are responsible for obtaining and maintaining any computer hardware, equipment, network services and connectivity, telecommunications services, and other products and services necessary to access and use the Services.

9. Indemnification

To the fullest extent permitted by applicable law, you will indemnify, defend (at our option), and hold harmless ElevenLabs and our officers, directors, partners, licensors, employees and agents from and against any losses, liabilities, claims, demands, damages, expenses or costs ("**Claims**") arising out of or related to: (a) your access to or use of the Services; (b) the Content or Feedback; (c) your violation of these Terms; (d) your violation, misappropriation, or infringement of any rights of another (including intellectual property rights or privacy rights); or (e) your conduct in connection with the Services or the Content. You will cooperate with ElevenLabs in defending such Claims, and pay all fees, costs, and expenses associated with defending such Claims (including attorneys' fees). ElevenLabs will have control of the defense or settlement, at ElevenLabs' sole option, of any third-party Claims. This indemnity is in addition to, and not in lieu of, any other indemnities set forth in a written agreement between you and ElevenLabs.

10. Disclaimers

Your use of our Services, Beta Services and any content or materials provided therein or therewith (including the Third-Party Content and Third-Party Services) is at your sole risk. To the fullest extent permitted under applicable law, our Services, Beta Services and any content or materials provided therein or therewith (including the Third-Party Content and Third-Party Services) are provided “as is” and “as available” without warranties of any kind, either express or implied. ElevenLabs disclaims all warranties with respect to the foregoing, including implied warranties of merchantability, fitness for a particular purpose, title, and non-infringement. In addition, ElevenLabs does not represent or warrant that our Services, Beta Services or any content provided therein or therewith (including the Third-Party Content and Third-Party Services) are accurate, complete, reliable, current, or error-free or that access to our Services, Beta Services or any content provided therein or therewith (including the Third-Party Content and Third-Party Services) will be uninterrupted. While ElevenLabs attempts to make your use of our Services, Beta Services and any content provided therein or therewith (including the Third-Party Content and Third-Party Services) safe, we cannot and do not represent or warrant that our Services, Beta Services or any content provided therein or therewith (including the Third-Party Content and Third-Party Services) are free of viruses or other harmful components or content or materials. All disclaimers of any kind (including in this Section 10 and elsewhere in these Terms) are made for the benefit of all ElevenLabs and ElevenLabs’ respective shareholders, agents, representatives, licensors, suppliers, and service providers, as well as our and their respective

successors and assigns. Due to the nature of machine learning, the Output generated by you using the Services may not be unique across users, as the Services may produce the same or similar Output for you and a third party. Two different parties may receive the same or similar Output after submitting their respective Inputs. Responses requested by and generated for other users that are not you shall not be considered Output for you, and you shall have no right or title over it.

11. Limitation of Liability

(a) To the fullest extent permitted by applicable law, ElevenLabs will not be liable to you under any theory of liability (whether based in contract, tort, negligence, warranty, or otherwise) for any indirect, consequential, exemplary, incidental, punitive, or special damages or lost profits, even if ElevenLabs has been advised of the possibility of such damages.

(b) The total liability of ElevenLabs for any claim arising out of or relating to these Terms or our Services, regardless of the form of the action, is limited to the greater of: (i) One Hundred United States Dollars ($100 USD); and (ii) the amount paid by you to use our Services in the 12 months preceding the claim.

12. Dispute Resolution; Binding Arbitration

Please read this Section 12 carefully because it requires you and ElevenLabs to arbitrate certain disputes and claims and limits the manner in which we can seek relief from each other. Arbitration precludes you and ElevenLabs from suing in court or having a jury trial. You and ElevenLabs agree that arbitration will be solely on an individual basis and not as a class arbitration, class action, or any other kind of representative proceeding. ElevenLabs and you are each waiving the right to trial by a jury.Follow the instructions below if you wish to opt out of the requirement of arbitration on an individual basis. No class or representative actions or arbitrations are allowed under this arbitration agreement.

(a) Informal Dispute Resolution Prior to Arbitration. For any dispute or claim between you and ElevenLabs arising out of or relating in any way to your access to or use of the Services, any communications you receive, any products sold or distributed through the Services or these Terms and prior versions of these Terms, including claims and disputes that arose between you and us before the effective date of these Terms, or any privacy or data security claims, (collectively, "**Disputes**", and each a "**Dispute**"), you and ElevenLabs agree to attempt to first resolve the Claim informally via the following process:

- If you assert a Dispute against ElevenLabs, you will first contact ElevenLabs by sending a written notice of your Dispute to ElevenLabs by email to legal@elevenlabs.io. If ElevenLabs asserts a Dispute against you, ElevenLabs will contact you by sending a written notice of ElevenLabs'

Dispute to you via email to the primary email address associated with your account.

- If you and ElevenLabs cannot reach an agreement to resolve the Dispute within 30 days after you or ElevenLabs receives the applicable notice, then either party may submit the Dispute to binding arbitration as set forth below. The statute of limitations and any filing fee deadlines shall be tolled for thirty (30) days from the date that either you or ElevenLabs first send the applicable notice so that the parties can engage in this informal dispute-resolution process.

(b) Disputes Subject to Binding Arbitration; Exceptions. Except for individual disputes that qualify for small claims court and any disputes exclusively related to the intellectual property or intellectual property rights of you or ElevenLabs, including any disputes in which you or ElevenLabs seek injunctive or other equitable relief for the alleged unlawful use of your or ElevenLabs' intellectual property or other infringement of your or ElevenLabs' intellectual property rights ("**IP Disputes**"), all Disputes, whether based in contract, tort, statute, fraud, misrepresentation, or any other legal theory, that are not resolved in accordance with Section 12(a) will be resolved by a neutral arbitrator through final and binding arbitration instead of in a court by a judge or jury. The arbitration shall be administered by Judicial Arbitration and Mediation Services, Inc. ("**JAMS**") pursuant to its Comprehensive Arbitration Rules and Procedures. The arbitrator will have the authority to grant any remedy or relief that would otherwise be available in court. The remedies and reliefs rendered by the arbitrator may be confirmed and enforced in any court having jurisdiction.

A party who wishes to initiate arbitration must provide the other party with a request for arbitration (the "**Request**"). The Request must include: (i) the name,

mailing address, email address, and telephone number of the party seeking arbitration and the email address associated with any applicable account; (ii) a statement of the legal claims being asserted and the factual bases of those claims; (iii) a description of the remedy sought and an accurate, good faith calculation of the amount in controversy in United States dollars; (iv) a statement certifying completion of the informal dispute resolution process as described in Section 12(a) above; and (v) evidence that the requesting party has paid any necessary filing fees in connection with such arbitration.

If the party requesting arbitration is represented by counsel, the Request shall also include such counsel's name, mailing address, email address, and telephone number. Such counsel must also sign the Request. By signing the Request, counsel certifies to the best of counsel's knowledge, information, and belief, formed after an inquiry reasonable under the circumstances, that: (A) the Request is not being presented for an improper purpose, such as to harass, cause unnecessary delay, or needlessly increase the cost of dispute resolution; (B) the claims, defenses and other legal contentions are warranted by existing law or by a non-frivolous argument for extending, modifying, or reversing existing law or for establishing new law; and (C) the factual and damages contentions have evidentiary support or, if specifically so identified, will likely have evidentiary support after a reasonable opportunity for further investigation or discovery.

You and ElevenLabs agree that all materials and documents exchanged during the arbitration proceedings shall be kept confidential and shall not be shared with anyone except the parties' attorneys, accountants, or authorized representatives,

and shall be subject to the condition that they agree to keep all materials and documents exchanged during the arbitration proceedings strictly confidential.

(c) Opting Out of Arbitration. You have the right to opt out of binding arbitration within 30 days of the date you first accepted these Terms by providing us with notice of your decision to opt-out via email or by certified mail to the applicable address set out below. In order to be effective, the opt-out notice must include your full name, mailing address, and email address. The notice must also clearly indicate your intent to opt out of binding arbitration. By opting out of binding arbitration, you are agreeing to resolve disputes in accordance with Section 12.

- Eleven Labs Inc.
- Attn: Legal Department – Arbitration Opt-Out
- 169 Madison Ave #2484
- New York, NY 10016
- Legal@elevenlabs.io

(d) Rejection of Future Arbitration Changes. You may reject any change we make to Section 12 (except address changes) by personally signing and sending us notice within 30 days of the change by certified mail addressed to:

- Eleven Labs Inc.
- Attn: Legal Department – Arbitration Opt-Out
- 169 Madison Ave #2484
- New York, NY 10016

If you do, the most recent version of Section 12 before the change you rejected will apply.

(e) Severability. If any portion of this Section 12 is found to be unenforceable or unlawful for any reason, including but not limited to because it is found to be unconscionable, (i) the unenforceable or unlawful provision will be severed from these Terms; (ii) severance of the unenforceable or unlawful provision will have no impact whatsoever on the remainder of this Section 12 or the parties' ability to compel arbitration of any remaining claims on an individual basis pursuant to this Section 12; and (iii) to the extent that any claims must therefore proceed on a class, collective, consolidated, or representative basis, such claims must be litigated in a civil court of competent jurisdiction and not in arbitration. The litigation of those claims will be stayed pending the outcome of any individual claims in arbitration. Further, if any part of this Section 12 is found to prohibit an individual claim seeking public injunctive relief, that provision will have no effect to the extent such relief is allowed to be sought out of arbitration, and the remainder of this Section 12 will be enforceable.

(f) Waiver of Jury Trial. YOU AND ELEVENLABS HEREBY WAIVE ANY CONSTITUTIONAL AND STATUTORY RIGHTS TO SUE IN COURT AND HAVE A TRIAL IN FRONT OF A JUDGE OR A JURY. You and ElevenLabs are instead electing that all Disputes shall be resolved by arbitration under these Terms, except as specified in Section 12(b).

(g) Waiver of Class and Other Non-Individualized Relief. YOU AND ELEVENLABS AGREE THAT, EXCEPT AS SPECIFIED IN SECTION 12(h), EACH PARTY MAY BRING CLAIMS AGAINST THE OTHER ONLY ON AN INDIVIDUAL BASIS AND NOT ON A CLASS, REPRESENTATIVE, OR

COLLECTIVE BASIS, AND THE PARTIES HEREBY WAIVE ALL RIGHTS TO HAVE ANY DISPUTE BE BROUGHT, HEARD, ADMINISTERED, RESOLVED, OR ARBITRATED ON A CLASS, COLLECTIVE, REPRESENTATIVE, OR MASS ACTION BASIS. ONLY INDIVIDUAL RELIEF IS AVAILABLE, AND DISPUTES OF MORE THAN ONE CUSTOMER OR USER CANNOT BE ARBITRATED OR CONSOLIDATED WITH THOSE OF ANY OTHER CUSTOMER OR USER. Subject to this Section 12, the arbitrator may award declaratory or injunctive relief only in favor of the individual party seeking relief and only to the extent necessary to provide relief warranted by the party's individual claim. Nothing in this paragraph is intended to, nor shall it, affect the terms and conditions under Section 12(h). Notwithstanding anything to the contrary in this Section 12, if a court decides by means of a final decision, not subject to any further appeal or recourse, that the limitations of this Section are invalid or unenforceable as to a particular claim or request for relief, you and ElevenLabs agree that the particular claim or request for relief, and only that particular claim or request for relief, shall be severed from the arbitration and may be litigated in the state or federal courts located in the State of New York. All other Disputes shall be arbitrated or litigated in small claims court. This Section does not prevent you or ElevenLabs from participating in a class-wide settlement of claims.

(h) Batch Arbitration. To increase the efficiency of administration and resolution of arbitrations, you and ElevenLabs agree that in the event that there are 100 or more individual Requests of a substantially similar nature filed against ElevenLabs by or with the assistance of the same law firm, group of law firms, or organizations, within a 30 day period (or as soon as possible thereafter), JAMS

shall: (i) administer the arbitration demands in batches of 100 Requests per batch (plus, to the extent there are less than 100 Requests left over after the batching described above, a final batch consisting of the remaining Requests); (ii) appoint one arbitrator for each batch; and (iii) provide for the resolution of each batch as a single consolidated arbitration with one set of filing and administrative fees due per side per batch, one procedural calendar, one hearing (if any) in a place to be determined by the arbitrator, and one final award ("**Batch Arbitration**").

All parties agree that Requests are of a "substantially similar nature" if they arise out of or relate to the same event or factual scenario and raise the same or similar legal issues and seek the same or similar relief. To the extent the parties disagree on the application of the Batch Arbitration process, the disagreeing party shall advise JAMS, and JAMS shall appoint a sole standing arbitrator to determine the applicability of the Batch Arbitration process ("**Administrative Arbitrator**"). In an effort to expedite resolution of any such dispute by the Administrative Arbitrator, the parties agree the Administrative Arbitrator may set forth such procedures as are necessary to resolve any disputes promptly. The Administrative Arbitrator's fees shall be paid by ElevenLabs.

You and ElevenLabs agree to cooperate in good faith with JAMS to implement the Batch Arbitration process, including the payment of single filing and administrative fees for batches of Requests, as well as any steps to minimize the time and costs of arbitration, which may include: (1) the appointment of a discovery special master to assist the arbitrator in the resolution of discovery

disputes; and (2) the adoption of an expedited calendar of the arbitration proceedings. **This Batch Arbitration provision shall in no way be interpreted as authorizing a class, collective and/or mass arbitration or action of any kind, or arbitration involving joint or consolidated claims under any circumstances, except as expressly set forth in this provision.**

13. Governing Law

Any Claims will be governed by and construed and enforced in accordance with the laws of the State of New York, except to the extent preempted by U.S. Federal Law, without regard to conflict of law rules or principles (whether of the State of New York or any other jurisdiction) that would cause the application of the laws of any other jurisdiction. If any Claim is not subject to arbitration pursuant to Section 12, then the state and federal courts located in New York City, New York, will have exclusive jurisdiction. You and ElevenLabs waive any objection to venue in any such courts. If your local law requires that consumer contracts be interpreted subject to local law and enforced in the courts of that jurisdiction, this section may not apply to you only to the extent that local law conflicts with this section.

14. Modifying and Terminating Our Services

We may: (a) modify, impose limits on, replace, upgrade, update, suspend, or terminate providing all or part of our Services at any time; (b) charge, modify, or waive any fees required to use the Services; or (c) offer opportunities to some or all end users of the Services, each of (a) through (c) without any liability or additional notice to you. All modifications and additions to the Services will be governed by the Terms or Supplemental Terms, unless otherwise expressly stated by ElevenLabs in writing. We are not responsible for any loss or harm related to your inability to access or use our Services.

15. Export Control

You are responsible for compliance with United States export controls and for any violation of such controls, including any United States embargoes or other federal rules and regulations restricting exports. You represent and warrant that you are not located in a country or territory that is subject to economic sanctions or trade embargoes imposed by the U.S. Government (including Belarus, Cuba, Iran, North Korea, Russia, Syria, and the annexed regions of Ukraine), that you are not listed on identified on any U.S. Government list of sanctioned individuals, that you will comply fully with all relevant export laws and regulations of the United States and other international trade laws applicable to your use of the Services.

16. Miscellaneous

(a) ElevenLabs' failure to exercise or enforce any right or provision of these Terms will not operate as a waiver of such right or provision. These Terms reflect the entire agreement between the parties relating to the subject matter hereof and supersede all prior agreements, representations, statements, and understandings of the parties. Except as otherwise provided herein, these Terms are intended solely for the benefit of the parties and are not intended to confer third-party beneficiary rights upon any other person or entity. Communications and transactions between us may be conducted electronically.

(b) The section titles in these Terms are for convenience only and have no legal or contractual effect. Lists of examples following "including" or "e.g." or similar words are not exhaustive (that is, they are interpreted to include "without limitation"). All monetary amounts are expressed in U.S. dollars. URLs are understood to also refer to successor URLs, URLs for localized content, and information or resources linked from within the websites at the specified URLs. The word "or" will be deemed an inclusive "or".

(c) If any portion of these Terms is found to be unenforceable or unlawful for any reason, including but not limited to because it is found to be unconscionable, (a) the unenforceable or unlawful provision will be severed from these Terms; (b) severance of the unenforceable or unlawful provision will have no impact whatsoever on the remainder of these Terms; and (c) the unenforceable or unlawful provision may be revised to the extent required to render the Terms

enforceable or valid, and the rights and responsibilities of the parties will be interpreted and enforced accordingly, so as to preserve the Terms and the intent of the Terms to the fullest possible extent.

(d) If you have a question or complaint regarding the Services, please send an email to team@elevenlabs.io. You may also contact us by writing to:

- Eleven Labs Inc.
- 169 Madison Ave #2484
- New York, NY 10016

note that email communications will not necessarily be secure; accordingly, you should not include payment card information or other sensitive information in your email correspondence with us. Further, under California Civil Code Section 1789.3, California consumers are entitled to the following specific consumer rights notice: The Complaint Assistance Unit of the Division of Consumer Services of the California Department of Consumer Affairs may be contacted in writing at 1625 North Market Boulevard, Suite N-112, Sacramento, California 95834, or by telephone at 1 (800) 952-5210.

17. Additional Terms Applicable to Mobile Devices

If you download our mobile application associated with the Services (“**Mobile App**”) from an app store or distribution platform (each, an “**App Store**”), you

acknowledge and agree that the availability of the Mobile App and the Services is dependent on the App Store from whom you received the Mobile App license, and that these Terms are between you and ElevenLabs and not with the App Store. ElevenLabs, not the App Store, is solely responsible for the Services, including the Mobile App. In order to use the Mobile App, you must have access to a wireless network, and you agree to pay all fees associated with such access. You also agree to pay all fees (if any) charged by the App Store in connection with the Services, including the Mobile App. You agree to comply with, and your license to use the Mobile App is conditioned upon your compliance with all terms of agreement imposed by the applicable App Store when using any Service, including the Mobile App. You acknowledge that the App Store (and its subsidiaries) are third-party beneficiaries of the Agreement and will have the right to enforce it.

(a) Apple App Store. The following terms apply if you download our Mobile App from a device made by Apple Inc. ("**Apple**") or the Apple App Store.

(i) **Acknowledgment.** You acknowledge that these Terms are concluded solely between us, and not with Apple. ElevenLabs, not Apple, is solely responsible for the Mobile App and the content thereof. You further acknowledge that the usage rules for the Mobile App are subject to any additional restrictions set forth in the Usage Rules for the Apple App Store Terms of Service as of the date you download the Mobile App, and in the event of any conflict, the Usage Rules in the Apple App Store will govern if they are more restrictive. You acknowledge that you have had the opportunity to review the Usage Rules.

(ii) **Scope of License.** The license granted to you is limited to a non-transferable license to use the Mobile App on any iPhone, iPod touch, iPad, or any other Apple device that you own or control as permitted by the Usage Rules set forth in the Apple App Store Terms of Service.

(iii) **Maintenance and Support.** You and ElevenLabs acknowledge that Apple has no obligation whatsoever to furnish any maintenance and support services with respect to the Mobile App.

(iv) **Warranty.** You acknowledge that Apple is not responsible for any product warranties, whether express or implied by law, with respect to the Mobile App. In the event of any failure of the Mobile App to conform to any applicable warranty, you may notify Apple, and Apple will refund the purchase price, if any, paid to Apple for the Mobile App by you; and to the maximum extent permitted by applicable law, Apple will have no other warranty obligation whatsoever with respect to the Mobile App. The parties acknowledge that to the extent that there are any applicable warranties, any other claims, losses, liabilities, damages, costs, or expenses attributable to any failure to conform to any such applicable warranty would be the sole responsibility of ElevenLabs. However, ElevenLabs has disclaimed all warranties of any kind with respect to the Mobile App, and therefore, there are no warranties applicable to the Mobile App.

(v) **Product Claims.** You and ElevenLabs acknowledge that as between Apple and ElevenLabs, ElevenLabs, not Apple, is responsible for addressing any claims relating to the Mobile App or your possession and/or use of the Mobile

App, including, but not limited to (A) product liability claims, (B) any claim that the Mobile App fails to conform to any applicable legal or regulatory requirement, and (C) claims arising under consumer protection or similar legislation.

(vi) **Intellectual Property Rights.** The parties acknowledge that, in the event of any third-party claim that the Mobile App or your possession and use of the Mobile App infringe that third party's intellectual property rights, ElevenLabs, and not Apple, will be solely responsible for the investigation, defense, settlement and discharge of any such intellectual property infringement claim to the extent required under these Terms.

(vii) **Third-Party Beneficiary.** Apple and its subsidiaries are third-party beneficiaries of these Terms, and upon your acceptance of these Terms, Apple will have the right (and will be deemed to have accepted the right) to enforce these Terms against you as a third-party beneficiary thereof.

(b) Google Play Store. The following terms apply if you download our Mobile App from Google Play (or its successors) operated by Google, Inc. or one of its affiliates ("**Google**").

(i) **Google Play Terms.** You acknowledge that to the extent of any conflict between (A) the Google Play Terms of Services and the Google Play Business and Program Policies or such other terms which Google designates as default end user license terms for Google Play (all of which together are referred to as the "**Google Play Terms**"), and (B) the other terms and conditions in these

Terms, the Google Play Terms shall apply with respect to your use of the Mobile App that you download from Google Play.

(ii) **Acknowledgement.** You acknowledge that Google does not have any responsibility or liability related to compliance or noncompliance by ElevenLabs or you (or any other user) under these Terms or the Google Play Terms.

17. Purchase Through Reseller

If you subscribe to Services from an authorized ElevenLabs reseller or partner ("**Reseller**"), and notwithstanding anything set forth in these Terms: (a) these Terms will act as the end user license agreement, and in addition to your compliance with these Terms, your right to access and use such Services is subject to the terms and conditions of your written agreement with the Reseller ("**Reseller Agreement**"), including your obligation to timely pay Fees to the Reseller; (b) you will execute all orders directly with the Reseller and not ElevenLabs; and (c) the terms and conditions of Section 6 (Subscription Services; Payment) do not apply. Any refund, payments, or credits which ElevenLabs must provide to you in accordance with the terms of this Agreement will be provided by ElevenLabs to Reseller, and you acknowledge that you must seek such refunds, payments, and credits from Reseller only. Furthermore, your right to terminate or cancel its Service is solely as described in the Reseller Agreement, provided that nothing herein shall be interpreted as permitting Reseller to offer terms inconsistent with the remainder of this Agreement. If the

Reseller ceases at any time to be an authorized Reseller, including for a failure to pay for any Services, your continued use of Services may be conditioned upon you executing a written agreement for such Services directly with ElevenLabs, and paying the outstanding Fees, if any, that Reseller did not remit to ElevenLabs on your behalf. Resellers are not authorized to modify the Agreement or make any promises or commitments on ElevenLabs's behalf, and ElevenLabs is not bound by any obligations to you other than as set forth in this Agreement. ElevenLabs may temporarily suspend or terminate delivery of Services to you in accordance with these Terms.